

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUP0048320: YOLANDA ALVARADO vs CITY OF SAN BUENAVENTURA DVA
CITY OF VENTURA, et al.
08/24/2026 in Department 21
Demurrer**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant State of California’s, Acting by and Through the 31st District Agricultural Association, Demurrer to Plaintiff’s First Amended Complaint.

Tentative Ruling:

The demurrer to the First Amended Complaint is SUSTAINED pursuant to CCP §430.10(e), with leave to amend. Plaintiff shall be granted 30 days’ leave to file a Second Amended Complaint.

Discussion:

Generally, each person has a duty to use ordinary care and is liable for injuries caused by a failure to exercise reasonable care under the circumstances. (Civil Code §1714.) However, public entities can only be held liable for negligence if a statute specifically provides for such. (Gov. Code §815; *Quigley v. Garden Valley Fire Protection Dist.* (2019) 7 Cal.5th 798, 803-804.) To adequately state a cause of action against a public entity, the pleader must set forth ultimate facts with particularity, averring “every fact material to the existence of its statutory liability.” (*Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795; *City of Los Angeles v. Superior Court* (2021) 62 Cal.App.5th 129, 138.) This detail requires, at a minimum, that the pleader identify the precise statute or regulation creating the basis for liability. (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1458; *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802.)

Here, plaintiff indicates three bases for potential liability but did not specify the statutory predicate for any. Plaintiff, using a Judicial Council form complaint, indicated at Paragraph 10,

that the First Amended Complaint was supposed by causes of action for general negligence, premises liability and statutory liability. However, there is in fact only one cause of action attached to the operative pleading, and that is a cause of action for “premises liability” – complete with distinct counts therein.

A public entity may be held liable for “premises liability” only if (1) the condition complained of creates a substantial risk of injury when used with due care in a reasonably foreseeable manner; (2) the injury must have been proximately caused by the condition; (3) the condition must have created a reasonably foreseeable risk of the kind of injury suffered; and (4) either (a) the condition was created by an employee within the scope of his or her public employment, or (b) the entity had actual or constructive notice of the condition sufficiently before the injury to have taken measures to protect against the risk involved, including repair, warnings, or safeguards. (See, e.g., *Thimon v. City of Newark* (2020) 44 Cal.App.5th 745, 753-754 [crosswalk with no signals]; *Hedayatzadeh v. City of Del Mar* (2020) 44 Cal.App.5th 555, 561-568 [lack of pedestrian barriers]; *Huerta v. City of Santa Ana* (2019) 39 Cal.App.5th 41, 48-51 [poor lighting]; *Fuller v. Department of Transp.* (2019) 38 Cal.App.5th 1034, 1042-1043 [unsafe roadway]; *Allyson v. Department of Transp.* (1997) 53 Cal.App.4th 1304, 1315-1321 [slippery roadway].)

Regarding the first element, public entities are only responsible for conditions which create substantial (as distinguished from a minor, trivial or insignificant) risk of injury when used with due care. (See Govt. Code §830(a).) The definition of dangerous condition subsumes the common law doctrine of trivial defect, which serves as a “check valve for the elimination from the court system of unwarranted litigation which attempts to impose upon a property owner what amounts to absolute liability for injury to persons who come upon the property.” *Ursino v. Big Boy Restaurants* (1987) 192 Cal.App.3d 394, 399; in accord, *Huckey v. City of Temecula* (2019) 37 Cal.App.5th 1092, 1107-1110; *Stathoulis v. City of Montebello* (2008) 164 Cal.App.4th 559, 565-566; *Caloroso v. Hathaway* (2004) 122 Cal.App.4th 922, 927.

According to plaintiff, there was a “substance” on the ground that caused someone else to fall and take her down as well. There is no adequate description of this “substance” – including its color, size, texture, or age. The lack of detail leaves defendant, and this Court, to guess as to whether this case even involves a condition of public property. For that reason, the pleading fails to state facts with sufficient particularity to state a cause of action.

Regarding the second element, which neither side has discussed, this Court finds that plaintiff has yet to plead any facts to show proximate causation. Causation turns on whether defendant’s conduct was a “substantial factor” in bringing about the injury. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205; *Bowman v. Wyatt* (2010) 186 Cal.App.4th 286, 312.) A “substantial factor” is a non-remote and non-trivial factor that a reasonable person would consider to have contributed to the harm, even if there are other factors at play. There must be substantial evidence supporting the nexus, which means “such evidence as a reasonable fact trier might accept as adequate to support a conclusion; evidence which has ponderable legal significance, which is reasonable in nature, credible and of solid value.” (*Boeken v. Philip Morris, Inc.* (2005) 127 Cal.App.4th 1640, 1663; in accord, *Khan v. Shiley, Inc.* (1990) 217 Cal.App.3d 848, 855.) It is plaintiff’s burden to plead facts regarding causation. (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1105.)

Causation must be proven, not presumed. (See, e.g., *Padilla v. Rodas* (2008) 160 Cal.App.4th 742, 752-753 [“Where there is evidence that the harm could have occurred even in the absence of the defendant's negligence, proof of causation cannot be based on mere speculation, conjecture and inferences drawn from other inferences to reach a conclusion unsupported by any real evidence ... when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant.”]; *Buehler v. Alpha Beta Co.* (1990) 224 Cal.App.3d 729, 734 [“all appellant can argue is that she slipped and fell. She lost her balance for some unknown reason. She did not see anything on the floor which caused her to slip and fall and did not know what caused her to slip. In such a situation, negligence is never presumed.”].) The fact that a stranger lost his footing, and on his way to the ground caused plaintiff to lose her footing, is not a basis to presume causation.

Finally, there are no facts pled from which a reasonable trier of fact could conclude that defendant had notice of the condition. There is no suggestion that defendant had actual notice, and as such the only possibility here would be to show evidence of constructive notice. Pursuant to Govt. Code §835.2(b), a public entity has constructive notice of a dangerous condition “only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.” In terms of duration, there are no facts pled. (*Martinez v. City of Beverly Hills* (2021) 71 Cal.App.5th 508, 519-520 [condition had to be “so obvious, conspicuous, or notorious that it should have been discovered by the public entity”].) A defect is not obvious just because it is visible and nontrivial; otherwise, “the constructive notice element would be automatically satisfied in every instance where that dangerous condition preexisted the accident and thus would effectively write the negligence element out of the statute.” (*Id.* at 520.)

The demurrer to the entire First Amended Complaint on the basis of plaintiff's failure to state sufficient facts (CCP §430.10(e)) is SUSTAINED. The demurrer to the entire First Amended Complaint on the basis of uncertainty (CCP §430.10(f)) is MOOT. Although plaintiff's implied request for leave to amend is tethered only to the PL-5 count, plaintiff has but one cause of action and a demurrer sustained runs to the entire count. Thus, plaintiff will be permitted 30 days' leave to file a Second Amended Complaint.

Defendant to give notice.